

HOUSE No. 5137**The Commonwealth of Massachusetts**

PRESENTED BY:

Shirley B. Arriaga*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to protecting Avian rights and restricting ongoing trade.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Shirley B. Arriaga</i>	<i>8th Hampden</i>	<i>7/11/2025</i>
<i>Rodney M. Elliott</i>	<i>16th Middlesex</i>	<i>7/28/2025</i>
<i>Natalie M. Higgins</i>	<i>4th Worcester</i>	<i>8/1/2025</i>
<i>John J. Marsi</i>	<i>6th Worcester</i>	<i>8/1/2025</i>
<i>Margaret R. Scarsdale</i>	<i>1st Middlesex</i>	<i>8/1/2025</i>
<i>Michelle M. DuBois</i>	<i>10th Plymouth</i>	<i>8/11/2025</i>
<i>James K. Hawkins</i>	<i>2nd Bristol</i>	<i>8/11/2025</i>
<i>David M. Rogers</i>	<i>24th Middlesex</i>	<i>8/28/2025</i>
<i>Marjorie C. Decker</i>	<i>25th Middlesex</i>	<i>8/28/2025</i>
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>9/3/2025</i>
<i>Sean Garballey</i>	<i>23rd Middlesex</i>	<i>9/15/2025</i>
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>9/15/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>10/8/2025</i>
<i>Michelle L. Badger</i>	<i>1st Plymouth</i>	<i>10/22/2025</i>
<i>Tara T. Hong</i>	<i>18th Middlesex</i>	<i>11/7/2025</i>
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>11/7/2025</i>
<i>Erika Uyterhoeven</i>	<i>27th Middlesex</i>	<i>11/7/2025</i>
<i>Steven Owens</i>	<i>29th Middlesex</i>	<i>12/30/2025</i>

<i>John J. Lawn, Jr.</i>	<i>10th Middlesex</i>	<i>2/24/2026</i>
<i>Nick Collins</i>	<i>First Suffolk</i>	<i>2/26/2026</i>

HOUSE No. 5137

By Representative Arriaga of Chicopee, a petition (subject to Joint Rule 12) of Shirley B. Arriaga relative to the sale of parrots. Consumer Protection and Professional Licensure.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to protecting Avian rights and restricting ongoing trade.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 140 of the General Laws is hereby amended by inserting after
2 section 141D the following section: -

3 Section 141E. (a) For purposes of this section, the following words shall, unless the
4 context clearly requires otherwise, have the following meanings:

5 “Animal rescue organization”, a non-profit organization engaged in the rescue and
6 placement of animals that: (i) is registered with the department of agriculture; (ii) does not breed
7 animals and is not located on the same premises as any person or entity that breeds animals; and
8 (iii) does not obtain animals in exchange for payment or compensation from a person or entity
9 that breeds or brokers animals.

10 “Parrot”, a bird belonging to the order Psittaciformes.

11 (b) No person shall sell, offer to sell, exchange, trade, barter, lease or transfer for
12 permanent physical placement a parrot. A person may surrender or otherwise transfer for

13 permanent physical placement without compensation a parrot to: (i) an animal rescue
14 organization; or (ii) a public animal control facility or shelter. An animal rescue organization or a
15 public animal control facility or shelter may transfer a parrot to an individual for permanent
16 physical placement without compensation.

17 (c) A violation of this section shall be punished by a fine of not more than \$1,000. Each
18 parrot sold, exchanged, traded, bartered, leased or transferred for permanent physical placement
19 in violation of this section shall constitute a separate offense.

20 (d) A city or town shall enforce this section through its animal control officers or police
21 officers in a manner consistent with the disposition provisions in section 21D of chapter 40.

22 SECTION 2. This act shall take effect 180 days following its passage.